# NATIONAL COMPANY LAW TRIBUNAL
# BENGALURU BENCH
# COURT NO.1

ATTENDANCE CUM ORDER SHEET OF THE HEARING OF NATIONAL COMPANY LAW TRIBUNAL, BENGALURU BENCH, BENGALURU, HELD ON 19.12.2017.

PRESENT: 1. Hon'ble Member(J) **Shri Ratakonda Murali**
2. Hon'ble Member(T) **Dr. Ashok Kumar Mishra**

| C.P. No. or C.A. No. | T.P. No. | Purpose | Section | Name of the Parties M/s. / Mr. |
|---|---|---|---|---|
| CP(CAA) No.61/BB/ 17 | - | For correction in order | 230/ 232 | Flipkart Logistics Pvt. Ltd. & 2 Others. |

| SL. NO. | NAME (IN CAPITAL) & PHONE NUMBER | REPRESENTATION TO WHOM | SIGNATURE |
|---|---|---|---|

Perused the office note. The matter is listed today for making correction to this file in the allocation of case number. Counsel for petitioner is present.

Originally this application was inadvertently numbered as CP(CAA) No.61/BB/17 at the time of filing and this application was already disposed of with No.CA(CAA) No.61/BB/17.

It came to light, Since it is a first stage application under Sections 230-232 of Companies Act, 2013, and this should have been numbered as CA(CAA) No...../BB/17. However, by inadvertence, it was numbered as CP(CAA)No.61/BB/17.

It has also come to the notice of the Bench that the Registry has already assigned CA(CAA) No.61/BB/17 to another case M/s. Oswal Alloys Pvt. Ltd. Therefore, this application needs to be assigned fresh number currently available. The Registry has informed the current application number to be given to this case is CA(CAA) No.89/BB/17. This is also informed to the counsel, who reported no objection for making alteration to the case number.

Accordingly, the Registry is directed to re-number this application as CA(CAA) No. 89/BB/17 in the case of CP (CAA) No.61/BB/17 and carry out the necessary corrections in all the papers including the order passed by this Tribunal dated 03.11.2017.

We have seen the order dated 03.11.2017 in this case, where it is mentioned as CA(CAA) No.61/BB/17. However, this number is related to M/s. Oswal Alloys Private Ltd, which was given the number during the course of number of applications filed.

Therefore, the case No.CP(CAA) No.61/BB/17 is also required to be corrected as CA (CAA) No.89/BB/17 and the revised order be uploaded.

The case No.CP(CAA) No.61/BB/17 be treated as non-existent for statistical purposes.

MEMBER (T)

MEMBER (J)

Submitted

As per bench order necessary corrections in all the papers including the order dated 3.11.2017 is carried out

D.R. 20/12/2017